

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Gabriella Carpenter	Team: Squad #13	CCRB Case #: 201705963	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/05/2017 7:45 PM	Location of Incident: 111th Street and 34th Avenue	18 Mo. SOL 10/5/2018	Precinct: 115		
Date/Time CV Reported Sat, 07/22/2017 2:58 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 07/22/2017 2:58 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kasra Fathi	01378	956635	PBQN SU
2. POF Claire Lindner	31239	955067	PBQN SU

Officer(s)	Allegation	Investigator Recommendation
A . POM Kasra Fathi	Abuse: PO Kasra Fathi stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . POF Claire Lindner	Abuse: PO Claire Lindner stopped the vehicle in which § 87(2)(b) was an occupant.	B . Exonerated
C . POM Kasra Fathi	Abuse: PO Kasra Fathi searched the vehicle in which § 87(2)(b) was an occupant.	C . Exonerated
D . POF Claire Lindner	Abuse: PO Claire Lindner searched the vehicle in which § 87(2)(b) was an occupant.	D . Exonerated
E . POM Kasra Fathi	Abuse: PO Kasra Fathi damaged § 87(2)(b)s property.	E . Unsubstantiated
F . POF Claire Lindner	Abuse: PO Claire Lindner damaged § 87(2)(b)s property.	F . Unsubstantiated

Case Summary

§ 87(2)(b) filed a complaint with the CCRB via the website on July 22, 2017. On April 5, 2017, at approximately 7:45 p.m., Police Officer Kasra Fathi and Police Office Claire Linder of Patrol Borough Queens North Anti-Crime pulled over § 87(2)(b) for not turning on his headlights (**allegations A and B**). § 87(2)(b) and § 87(2)(b) were also in the car. After running § 87(2)(b)'s ID, the officers saw that there was a probable cause I-card for § 87(2)(b) for him and PO Fathi placed him under arrest. PO Lindner drove § 87(2)(b) to the stationhouse and PO Fathi drove § 87(2)(b)'s car. At the stationhouse, the officers conducted a search of § 87(2)(b)'s car (**allegations C and D**). When § 87(2)(b) got his car back, his air conditioner wire had been ripped out, an ashtray was broken, his seatbelt holders were popped out, and the material on the backseat was ripped (**allegations E and F**).

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- Mediation was not offered in this case because of § 87(2)(b)'s arrest.
- No notice of claim was filed with the comptroller's office in regard to this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has been involved in three other CCRB complaints: § 87(2)(b)
- PO Fathi has been a member of the service for three years and has had five other CCRB allegations pled against him in one case. § 87(2)(g)
- One vehicle stop allegation was pled against him in CCRB 201600025 that was exonerated.
- One vehicle search allegation was pled against him in CCRB 201600025 that was exonerated.
- PO Lindner has been a member of the service for four years and has not had any other CCRB allegations pled against her.

Potential Issues

- Neither § 87(2)(b) nor § 87(2)(b) could provide contact information for § 87(2)(b) and no contact information could be located for her in databases using the information they provided.
- The phone cut out after § 87(2)(b)'s initial phone statement and contact attempts to her were exhausted without her scheduling an in-person interview.

Findings and Recommendations

Allegations not pleaded:

- § 87(2)(g)

Allegation A: Abuse of Authority: PO Kasra Fathi stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B: Abuse of Authority: PO Claire Lindner stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) testified that he was driving east on 34th Avenue at 111th Street in Queens with two friends, § 87(2)(b) and § 87(2)(b) when he was pulled over by PO Fathi and PO Lindner (BR 01 and BR 02). To § 87(2)(b)'s knowledge, there was nothing wrong with his car except that his muffler is loud and his headlights possibly were not turned on to their full brightness. The officers were driving the opposite direction from § 87(2)(b) after § 87(2)(b) and the officers passed each other, the officers made a U-turn and pulled him over. PO Fathi approached § 87(2)(b)'s window and told him that he was stopped for not having his headlights on. § 87(2)(b) gave PO Fathi his license, registration, and insurance card, and PO Fathi took them back to his car. A few minutes later, PO Fathi came back and asked § 87(2)(b) to step out of the car. When § 87(2)(b) was out of the car, PO Fathi handcuffed him and said that the officers had to take him to the stationhouse so that he could be questioned in regard to an I-card. PO Fathi drove § 87(2)(b)'s car to the stationhouse and PO Lindner drove § 87(2)(b) in the officers' car. § 87(2)(b) was never given a summons for his headlights not being turned on.

§ 87(2)(g) PO Fathi told § 87(2)(b) that he had been stopped for a loud exhaust system (BR 03). § 87(2)(b) did not testify to whether § 87(2)(b)'s exhaust system is unusually loud. § 87(2)(b) was going to drive § 87(2)(b)'s car but PO Fathi said that she could not and that she and § 87(2)(b) would have to pick it up from the stationhouse.

PO Fathi testified that when he and PO Lindner were approximately 150 feet from a black Honda Accord, PO Fathi heard the car's loud exhaust system and saw that its headlights were off though the sun had set and the area was dimly lit (BR 04). He told PO Lindner that he heard the exhaust system but he was not sure if she also heard it. The officers made a U-turn and pulled the car over about thirty seconds after seeing it because PO Fathi intended to give the driver a warning and tell him to turn on his headlights. PO Fathi has written summonses for a loud exhaust system before and the law says that the exhaust system is too loud if it can be plainly heard from 150 feet away, so he did not need to run any other checks to see if the exhaust system was too loud. PO Fathi approached the driver's window and got § 87(2)(b)'s ID then then returned to his car and ran a check on it. The check showed that § 87(2)(b) had an open probable cause I-card for § 87(2)(b) from a few days earlier. PO Fathi called the 115th Precinct Detective Squad to verify the I-card and spoke to Lt. Weiss who confirmed it. PO Fathi returned to § 87(2)(b)'s car, explained that he was being arrested on an I-card, asked him to step out,

placed him in handcuffs, and took him to the back of the officers' car. At some point, PO Fathi saw a female civilian standing outside of the car who appeared to know § 87(2)(b) and wanted to see if he would be arrested, but PO Fathi could not recall whether she had been inside the car at any point. Either § 87(2)(b) or the female civilian asked if § 87(2)(b)'s car could be released to the female but PO Fathi said no and explained that the car would be vouchered at the stationhouse for safekeeping. PO Fathi could not release the car to the female because he was not sure if she had a license and the car was registered to § 87(2)(b) so it could not be released to someone else. PO Lindner drove § 87(2)(b) to the 115th Precinct stationhouse and PO Fathi drove § 87(2)(b)'s car. The officers did not search § 87(2)(b)'s car on the scene and PO Fathi did not search anywhere or open anything in the car before he drove it. PO Fathi did not give § 87(2)(b) a summons for the vehicle infractions that he was stopped for because § 87(2)(b) was charged with not having his headlights on instead.

§ 87(2)(g) PO Lindner could not recall hearing the car's exhaust system or PO Fathi saying anything about the exhaust system, and she thought that PO Fathi decided to stop § 87(2)(b) only because his headlights were off (BR 05). There were two female passengers in the car.

Motor vehicles must have an adequate muffler and exhaust system that prevents excessive or unusual noise and no such system can be modified in a way that will amplify the sound it emits. New York Vehicle and Traffic Law 3.9.375.31 (BR 07).

Every motor vehicle in operation from one-half hour after sunset to one-half hour before sunrise must have two headlights of equal power turned on. New York Vehicle and Traffic Law 3.9.375.2A (BR 08).

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[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended that **allegations A and B be closed as exonerated.**

Allegation C: Abuse of Authority: PO Kasra Fathi searched the vehicle in which § 87(2)(b) was an occupant.

Allegation D: Abuse of Authority: PO Claire Lindner searched the vehicle in which § 87(2)(b) was an occupant.

Allegation E: Abuse of Authority: PO Kasra Fathi damaged § 87(2)(b)'s property.

Allegation F: Abuse of Authority: PO Claire Lindner damaged § 87(2)(b)'s property.

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§ 87(2)(b) testified that his mother, § 87(2)(b), and brother, § 87(2)(b) went to the stationhouse to get § 87(2)(b)'s car. § 87(2)(b) told § 87(2)(b) later that when she arrived, she saw officers drive his car from the front of the stationhouse to the back of the stationhouse, and then they told her that she could not take the car because they had to voucher it since there had been a stolen license plate and tools inside. The officers gave her a black trash bag with everything that had been in § 87(2)(b)'s car that was not illegal. When § 87(2)(b) got his car back three or four days later, the armrest in the middle of the backseat had been pushed backward into the trunk and the fabric was ripped, one of his ashtrays was

missing and the other was broken, the seatbelt holders were popped out, the air conditioner line near the floor of the front passenger seat was ripped out, and water now leaks into the car near where the air conditioner line was ripped out.

§ 87(2)(b) testified that she and § 87(2)(b) went to the stationhouse and when they arrived, PO Fathi and PO Lindner were searching the entire car, entering all four doors and searching the trunk. § 87(2)(b) and § 87(2)(b) were told that the car could not be released to them so they left.

PO Fathi testified that he and PO Lindner did an inventory search of § 87(2)(b)'s vehicle at the stationhouse because they needed to keep everything safe and voucher what was inside. PO Fathi vouchered the car as well as any items in the car that were illegal or are sometimes used in crimes, and returned the rest of § 87(2)(b)'s property to § 87(2)(b)'s mother when she went to the stationhouse. Nothing was damaged during the inventory search, including the air conditioner wire, the seatbelt holders, the material on the car seat, and the ashtray.

§ 87(2)(g) PO Fathi started doing an inventory search of § 87(2)(b)'s car alone. When PO Lindner went outside later, PO Fathi showed PO Lindner the illegal things that he had found in the car and told her about a license plate in the front passenger seat. PO Lindner did not assist with the search but entered the front passenger seat and recovered the license plate that PO Fathi told her about.

Whenever an automobile comes into the custody of the NYPD, officers must do an inventory search in order to protect property, ensure against unwarranted claims of theft, and protect uniformed members of the service and others against dangerous instrumentalities. Patrol Guide Procedure 218-13 (BR 09).

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. It is therefore recommended that **allegations C and D be exonerated.**

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, it is recommended that **allegations E and F be closed as unsubstantiated.**

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date